THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH-II

NEW DELHI

CO. APPL.(CAA) 109/ND/2019

IN THE MATTER OF:

1. M/s Augite Estate Private Limited
   Having registered office at
   75-E Himalaya House, 23 Kusturba Gandhi Marg
   New Delhi-110001

Applicant No.1/Transferor Company

AND

2. M/s Moonlight Facilities Private Limited
   Having registered office at
   D-26, Defence Colony
   New Delhi-110024

Applicant No.2/Transferor Company

AND

3. M/s Ostrich Estate Private Limited M/s Moonlight Facilities Private Limited
   Having registered office at
   D-26, Defence Colony
   New Delhi-110024

Applicant No.3/Transferor Company

WITH

4. M/s India Ink Developers and Realtors Private Limited
   Having registered office at
   D-26, Defence Colony
   New Delhi-110024

Applicant No.4/ Transferee Company

Present- Mr. Prashant, Advocate

SECTION OF THE COMPANIES ACT: 230-232

25-07-2019

ORDER

As Per Ms. Ina Malhotra (Member Judicial)

1. This petition by way of Second Motion is admitted and fixed for hearing and final disposal on 19th September, 2019. There is a delay in filing of the present petition. Ld. Counsel prays for the delay being condoned for the reasons stated, the delay is hereby condoned.

2. Learned Counsel for the Petitioner Companies submits that in terms of the Order dated 25th July, 2019 passed by this Tribunal in Company Application No.CA(CAA)-106(ND)2017, the meeting of all Equity Shareholders and unsecured creditors of the applicant companies for the proposed Scheme of Amalgamation between the Transferor Companies No.1-3 with the Transferee Company/ Applicant No. 4 had been dispensed with in view of their consent affidavits being on record.

   There were no secured creditors of the Applicant Companies.

3. It is therefore now directed that the notice of final hearing be fixed for 19th September, 2019 and shall be advertised in the daily newspapers namely,

the "The Business Standard" in English and "Jansatta" in Hindi (Delhi Edition), not less than 10 days before the aforesaid date fixed for hearing.

4. In addition to the above public notice, the applicant companies shall individually serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern region), Ministry of Corporate Affairs (b)Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs (c) the Income Tax Department (d) Official Liquidator and to such other Sectoral Regulatory Authorities who may govern the working of the respective Companies involved in the Scheme at least 30 days before the date fixed for hearing of the above Petition.

5. All the applicants, shall at least 7 days before the date of hearing of the petition file an affidavit of service in relation to the paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator.

6. Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may file their objections on or before the date of hearing fixed herein, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

Sd/-

(V.K Subburaj)
Member (T)

Sd/-

(Ina Malhotra)
Member (J)